beneficiaries and the establishments concerned, and partly by corporate social responsibility (CSR).

For gig and platform workers, the entire responsibility has been cast on the Centre to formulate welfare schemes for life and disability cover, accident insurance, health and maternity benefits, old age protection, creche, and any other benefit determined. These schemes are also envisaged to be funded in a manner similar to the funding of Central government schemes for the welfare of unorganized workers. While the Code offers mandates to formulate and fund welfare schemes for unorganized workers and gig and platform workers, no specific entitlements have been created, nor has any specific scheme been announced. The workers will have to trust the good intentions and abilities of the Centre and the states in this regard.

No welfare schemes for gig and platform workers have been formulated at the close of calendar year 2021.

Industrial Relations Code Brings Reforms for Factories of Bygone Era

The Industrial Relations Code merges three labour-related laws: the Trade Unions Act, 1926; Industrial Employment (Standing Orders) Act, 1946; and Industrial Disputes Act, 1947.

The industry has been asking for freedom to ‘hire and fire’ workers and close factories when it is no longer economically viable to carry on production. The Code has brought in significant changes with respect to this traditional ask. First, it includes the concept of fixed-term employment as a regular mode of employment and building of provisions relating thereto in the law. Second, it eliminates the misuse of casual leave as a weapon of industrial action by bringing the same within the scope of ‘strike’. Third, it eliminates multiplicity of negotiating trade unions in an establishment by mandating that only a trade union with the support of 51 per cent or more workers would be allowed to participate in negotiations. Further, it